

Court No. - 3

Case :- WRIT - C No. - 34323 of 2023

Petitioner :- Bhanu Pratap

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Gauri Shankar Yadav

Counsel for Respondent :- C.S.C.,Ugrasen Kumar Pandey

Hon'ble Siddhartha Varma,J.

Hon'ble Manoj Bajaj,J.

The case of the petitioner is that the electricity connection of the petitioner was permanently disconnected in the year 2004. Learned counsel for the petitioner states that thereafter petitioner never used any electricity.

Learned counsel appearing for the Electricity Department may take instructions in the matter.

Put up this case on 02.11.2023 as fresh.

Till the next date of listing, no coercive action shall be taken against the petitioner.

Order Date :- 6.10.2023

M.S. Ansari

(Manoj Bajaj, J.) (Siddhartha Varma, J.)

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Hon'ble Siddhartha Varma,J.

Hon'ble Manoj Bajaj,J.

Learned counsel for Electricity Department prays for and is granted two weeks' time to take instructions as per the order dated 6.10.2023.

Put up this case as fresh on 21.11.2023.

Interim order, if any, is extended till the next date of listing.

Order Date :- 2.11.2023

P.S.Parihar

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Counsel for Petitioner :- Gauri Shankar Yadav

Counsel for Respondent :- C.S.C.,Ugrasen Kumar Pandey

Hon'ble Siddhartha Varma,J.

Hon'ble Shekhar B. Saraf,J.

On the request of learned counsel for the Electricity Department, place this case on 14.12.2023 as fresh. Interim order, granted earlier, shall continue till the next date of listing.

It is made clear that no further time shall be granted to learned counsel for the Electricity Department.

Order Date :- 21.11.2023

GS

(Shekhar B. Saraf, J.) (Siddhartha Varma, J.)

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Counsel for Petitioner :- Gauri Shankar Yadav

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Hon'ble Siddhartha Varma,J.

Hon'ble Shekhar B. Saraf,J.

1. Heard learned counsel for the parties.
2. When a bill of Rs.8,68,845/- was sent to the petitioner the instant writ petition was filed with the allegation that when the Electricity Department disconnected the connection in the year 2004 then no bill could have been sent to the petitioner.
3. Today, learned counsel for the Electricity Department, Sri Ugrasen Kumar Pandey has passed on a certain instructions which now states that the bill has been reduced to Rs.47273.94/-.
4. Learned counsel for the petitioner states that nothing for a period prior to two years of the billing could be taken from the petitioner as per Clause 6.15 of the Electricity Supply Code, 2005.
5. The clause 6.15 of the Electricity Supply Code, 2005 is being reproduced here asunder:-

"6.15 Recovery of Arrears (a) The payments due to the Licensee shall be recovered as per provision of Section 56 of the Act, and arrears of land revenue as per the provisions of the U.P. Government Electrical Undertaking (Dues Recovery) Act, 1958, as amended from time to time.

(b) Notwithstanding anything contained in any other law for the time being in force, no sum due from any consumer shall be recoverable after the period of two years from the date when such sum became first due unless such sum has been shown continuously as recoverable as arrear of charges of electricity supplied, and the supply of the electricity shall not be disconnected by

licensee for this reason.

[(Explanation: The date from which such charges becomes 'first due', needs to be correctly interpreted. If as a result of regular meter reading / inspection of installation of consumer, such charges / penalties levied as per this code or tariff schedule, shall become first due counted from the due date of payment of such a bill, and such bill shall be provided to the consumer not later than two billing cycle for that category of consumer.)]"

6. Under Such circumstances, considering the provisions of Clause 6.15 of the Electricity Supply Code, 2005, we are of the view that the petitioner is not liable to pay any amount. The recovery certificate is thus quashed.

7. With the aforesaid observations/directions, the writ petition stands allowed.

Order Date :- 14.12.2023

vkj

Court No. - 43

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Petitioner :- Bhanu Pratap

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Gauri Shankar Yadav

Counsel for Respondent :- C.S.C., Ugrasen Kumar Pandey

Hon'ble Siddhartha Varma,J.

Hon'ble Shekhar B. Saraf,J.

Civil Misc. Correction Application No.2 of 2024 :-

Heard counsel appearing on behalf of the parties.

There appears some typographical error in the order dated 14.12.2023.

In the first line of second paragraph of the order dated 14.12.2023 the amount "**Rs,8,68,845/-**" shall be substituted with "**Rs.18,68,845/-**".

Let this order be treated as part and parcel of the order dated 14.12.2023.

In the light of the above, this correction application is allowed.

Order Date :- 14.5.2024

Dev/-

(Shekhar B. Saraf,J.) (Siddhartha Varma,J.)